



Social Media

Overview

Social media platforms, such as Facebook, Twitter, or Instagram, may blur the line between an employee's professional and personal world because the technology allows users to communicate easily with anyone -- coworkers and non-coworkers alike -- at any time whether on or off duty. Consequently, agency technology policies should address social media to ensure employees know when and how to use social media at away from the workplace. And as social media and technology evolve over time, agency policies should be updated to address those changes.

Where appropriate, agencies may also use social media postings as evidence of misconduct. Social media postings also may qualify as protected disclosures under whistleblower reprisal law.

In addition, the Office of Government Ethics and the Office of Special Counsel have released guidance on how social media influences an employee's responsibility to comply with the ethical standards of conduct rules and the Hatch Act's prohibitions on political activity. The OGE's social media guidance is discussed below. For more information on avoiding prohibited political activity while using social media, check out the

[Quick Start Guide: Hatch Act -- Social Media](#).

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Broida** in this Quick Start Guide are to federal employment law expert Peter Broida's treatise, *A Guide to Merit Systems Protection Board Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

Agency policies and accounts

- The head of each agency has the authority to set limited personal use policies. [5 USC 301](#); [Executive Order 13011](#) (07/16/01).
- Whether an agency allows limited personal use of government information systems for social media depends on each agency's limited use policy. Some agencies' policies may specifically discuss social media, while others may be silent on social media. For examples, see the following: [OPM Social Media Policy, Version 6.0 \(2017\)](#); [HHS Policies that Apply to Social Media \(2017\)](#); [Department of Interior Social Media Policy \(2018\)](#).
- Each agency determines the purposes for which its official social media accounts may be used, subject to applicable laws. Employees using these official accounts must do so in accordance with applicable agency directives, regulations, and policies. LA-15-03, [115 LRP 16597](#) (OGE 2015), *citing* [5 CFR 2635.704](#) (a).
- OGE encourages agencies to adopt policies indicating which employees are authorized to access official accounts and defining the authorized uses for those accounts. LA-15-03, [115 LRP 16597](#) (OGE 2015).

Ethical standards of conduct

- Federal employees must ensure their activity on social media complies with the standards of conduct and any other applicable laws, such as agency supplemental regulations and agency-specific policies. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Employees also must use government property only to perform official functions, unless otherwise authorized. However, employees may use agency resources to access their personal social media accounts if allowed by an agency "limited use" policy. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Supervisors may not coerce, induce, order, or even ask a subordinate to maintain or create content for the supervisors' social media account, even if the subordinate is not involved in uploading the content. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Employees are prohibited from using their titles or positions for private gain or in any manner that creates the appearance that the government condones or sanctions a particular activity. [5 CFR 2635.702](#). In situations likely to cause confusion or doubt, employees should include a "clear and concise disclaimer" to clarify their social media account reflects only personal views and not that of the government or their agency. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Simply identifying one's official title or position in the biographical section of a social media account is allowed. However, agency ethics officials must look at the totality of circumstances to determine whether a reasonable person with knowledge of the relevant facts would conclude that the government sanctions or endorses the social media communication, such as whether the employee:
 - Stated she is acting on the government's behalf, uses her connection to the government to support her statements, or prominently features the agency's name or identifying item.
 - Refers to her government employment, title, or position outside of the biographical information section.
 - Holds a highly visible position, such as senior or political position, or is authorized to speak for the government. LA-15-03, [115 LRP 16597](#) (OGE 2015).

- So long as employees comply with the fundraising rules at [5 CFR 2635.808](#), they may use personal social media accounts to support nonprofit, charitable organizations. However, employees may not "personally solicit" funds from a subordinate or a known prohibited source on social media. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Prohibited sources include any person who is seeking official action by the employee's agency, does business or seeks to do business with that agency, conducts activities regulated by that agency, has interests that may be substantially affected by the employee's official duties, is in an organization that has majority membership of any of the above. [5 CFR 2635.808](#) (c); [5 CFR 2635.203](#) (d).
- Employees may post or publish a general fundraising announcement over social media even if a prohibited source is connected to the employee's social media network or views, comments, or responds to the post. However, employees may not:
 - Respond to inquiries posted by prohibited sources or subordinates regarding the fundraising request.
 - Specifically reference, link to, or otherwise target a subordinate or known prohibited source when fundraising over social media.
 - Use their official titles, positions, or authority associated with their positions to further fundraising efforts. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Employees may not disclose nonpublic information to further their private interests or the private interests of others. [5 CFR 2635.70](#). This prohibition applies without regard to the medium used for the unauthorized disclosure. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Other statutes and regulations also prohibit the disclosure of specific categories of nonpublic information, such as classified or confidential information. Employees must follow the rules regarding the disclosure of nonpublic information found in the Standards of Conduct and all other applicable rules when using social media. LA-15-03, [115 LRP 16597](#) (OGE 2015).
- Employees may not accept compensation for statements or communications made over social media that relate to their official duties. [5 CFR 2635.807](#) (a); [5 CFR 2635.703](#). LA-15-03, [115 LRP 16597](#) (OGE 2015).
- OGE issued a legal advisory to answer frequently raised questions concerning the application of the federal ethics laws to new developments in the use of personal social media. The advisory discusses employees' use of personal accounts on professional networking platforms, such as LinkedIn, and the monetization of personal social media activities. LA-23-13, [123 LRP 30399](#) (OGE 2023).
- Employees who are entrusted with the operation of official social media accounts must prevent unauthorized use of these accounts and avoid improper endorsements of private organizations on these accounts. LA-23-03, [123 LRP 3361](#) (OGE 2023).
- While operating official accounts, employees have an obligation to act impartially and to not participate in decisions and actions in which they have a disqualifying financial interest. LA-23-03, [123 LRP 3361](#) (OGE 2023).
- Employees who have an equity interest in a social media platform that provides free accounts may not participate in the decision to establish a free official account on the social media platform if doing so first requires substantive negotiations and changes to the terms of service agreement. LA-23-03, [123 LRP 3361](#) (OGE 2023).
- An employee who has an equity interest in a social media platform could not participate in a decision to open or close an account that relies on a subscription service or otherwise charges users without being in jeopardy of violating [18 USC 208](#) (a). LA-23-03, [123 LRP 3361](#) (OGE 2023).
- Employees are responsible for taking affirmative steps to "avoid any actions creating the appearance that they are violating the law or the ethical standards" while operating official social media accounts. LA-23-03, [123 LRP 3361](#) (OGE 2023), citing [5 CFR 2635.1C](#) (b)(14).
- Even if an employee's participation in creating or closing an official social media account would not implicate [18 USC 208](#) because that particular matter would not directly and predictably affect the financial interests of the platform, the employee must still take into consideration impartiality concerns if the employee has a "covered relationship" (as defined in [5 CFR 2635.502](#) (b)(1)) with the social media platform. Employees who have a covered relationship with a social media platform must consider whether the circumstances would cause a reasonable person with knowledge of the relevant facts to question their participation in the decision to create or close an official account on the platform. LA-23-03, [123 LRP 3361](#) (OGE 2023).
- For more information on avoiding prohibited political activity while using social media, check out the [Quick Start Guide: Hatch Act -- Social Media](#).

Misconduct

- A supervisory correctional officer engaged in discreditable behavior when he posted pictures of himself with a member of the Bandidos MC on a social media account, creating the impression that he fraternized with an outlaw motorcycle club and was potentially compromised. *Cordova v. Department of Justice*, [123 LRP 163](#) (MSPB AJ 2022).
- A lieutenant's public post on his personal Facebook page which stated "[t]hank you to the 360,222 white veterans that died ending slavery Happy Juneteenth everyone" was conduct unbecoming a management official. Several employees saw the post, it caused unease among the staff, and it was offensive to many employees. *Arrant v. Department of Justice*, [121 LRP 26205](#) (MSPB AJ 2021).
- A supervisory production controller engaged in conduct unbecoming a federal supervisor when he posted/shared racially and sexually inappropriate, offensive, vulgar and degrading material. The employee identified himself on Facebook as "Chief at the U.S. Department of Defense," and recipients of his posts included coworkers at his facility. *Jones v. Department of the Army*, [121 LRP 1191](#) (MSPB AJ 2021).
- A supply technician engaged in conduct unbecoming a federal employee when he made racially derogatory posts about African-American on his personal Facebook page. He made the posts when he was off duty, and he did not identify himself as an employee of the agency. However, the posts "went viral" -- were widely shared among Facebook users across the country -- and Facebook users identified him as employee of the agency. Numerous employees, including the director of the system of which the employee's facility was a part, became aware that he made the posts. Unidentified individuals threatened the employee and contacting the facility to ascertain his whereabouts, and the agency responded by maintaining a police presence and locking the doors to the employee's work unit. *Rhoden v. Department of Veterans Affairs*, [120 LRP 37383](#) (MSPB AJ 2020).

- A medical records technician engaged in misuse of government property and conduct unbecoming a federal employee when he used his government computer to access his personal social media account and converse with individuals about purchasing and using illegal drugs; engage in sexually explicit conversations, and view inappropriate pictures of others. *Hairston v. Department of Defense*, [12 LRP 34415](#), 835 F. App'x 571 (Fed. Cir. 2020, *nonprecedential*).
- A supervisory Border Patrol Agent engaged in conduct unbecoming a SPBA when he posted/shared unprofessional, derogatory, racially derisive, graphic, and harassing social media content on his Facebook through a closed access social media group, named "10-15 Ten-Fifteen" page. The "10-15 Ten-Fifteen" is a group of former and current Border Patrol members, consisting of bargaining and non-bargaining personnel from all over the country. He posted while he was on duty. *Hendricks v. Department of Homeland Security*, [120 LRP 26167](#) (MSPB AJ 2020).
- A supervisor of distribution operations engaged in improper conduct when he broadcasted threats against another employee on a Facebook Live video feed. Among other things, the employee made comments that included, "We want the smoke," a reference indicating he was ready to fight. The employee also referred to "burst[ing] a canon in the air" and "airing this place out," both references to discharging firearms. The employee also admitted he had in his possession what appeared to be a handgun although he later suggested to investigators that it had been a toy gun. The employee was outside of the coworker's house for an extended period of time and broadcasted his actions Facebook Live for the public to see. *Phillips v. U.S. Postal Service*, [120 LRP 23613](#) (MSPB AJ 2020).

Whistleblower reprisal

- A forestry technician's social media post about the agency's apparent failure to implement a COVID safety plan for the agency's returning firefighters was a protected disclosure that described a substantial and specific danger to public health and safety in the form of spreading the virus to the community. The social media post was a contributing factor in the agency's decision not to rehire the employee for the next summer fire season. The administrative judge granted corrective action because the agency failed to show it would not have rehired the employee even in the absence of his protected activity. *Rios v. Department of Agriculture*, [122 LRP 7185](#) (MSPB AJ 2022).

Discrimination and harassment

- The Department of Defense subjected a rigger/material equipment operator to retaliation for his social media posts complaining about discriminatory treatment in the workplace when a branch head offered the operator a position with reduced pay, removed his crane operator duties from his daily assignments, reassigned him, and charged him as AWOL for not being reachable despite evidence to the contrary. *Cory V. v. Department of Defense, Department of the Navy*, [123 LRP 25935](#) (EEOC OFO 2023).
- A field supervisor alleged he was subjected to discrimination based on race when he was terminated for "political speech" he posted on social media using his personal device while off duty. The agency found no discrimination. The EEOC affirmed on appeal, agreeing that the complainant could not show that the agency's legitimate explanation for its decision was pretext for discrimination. *Drew N. v. Department of Commerce, Bureau of the Census*, [122 LRP 37315](#), EEOC No. 2022003230 (EEOC OFO 2022).
- The Department of Homeland Security subjected an officer to discriminatory harassment based on sex when a Facebook group created by and for employees contained posts that were offensive to females. The EEOC noted that the group had 10,000 to 11,000 members and operated with the agency's knowledge. *Elenor S. v. Department of Homeland Security, Customs and Border Protection*, [121 LRP 680](#), EEOC No. 2019005538 (EEOC OFO 2020).
- An air traffic control specialist alleged that the agency subjected him to harassment and a hostile work environment based on race, sex, a reprisal when: 1) a coworker made a racist comment on Facebook stating his displeasure with the specialist's choice of a restaurant; and his training was undermined. The EEOC found the agency improperly dismissed the ongoing discriminatory harassment claim. *Knowlton v. Department of Transportation, Federal Aviation Administration*, [112 LRP 32530](#) (EEOC OFO 2012).
- A specialist alleged that a coworker posted a derogatory comment on Facebook that drew attention to his race. Although the specialist did have a Facebook account, he heard about the post through others. He convinced the EEOC that the post was part of a pattern of ongoing harassment. He was allowed to proceed with his Title VII claim against the agency. *Knowlton v. Department of Transportation, Federal Aviation Administration*, [112 LRP 32530](#) (EEOC OFO 2012).
- A staff psychologist for the Federal Bureau of Prisons alleged a hostile work environment based on sex when she became aware that a coworker created an Instagram page that contained sexist and vulgar posts that other employees frequently liked and commented on. The 9th U.S. Circuit Court of Appeals reversed a grant of summary judgment to the agency. The court explained that offsite conduct can alter conditions of the working environment in an objectively severe or pervasive manner, and the posts were permanently and infinitely viewable by coworkers. Further, the evidence showed that management-level employees reinforced the harassment. *Okonowsky v. Department of Justice, Federal Bureau of Prisons*, [124 LRP 28395](#) (9th Cir. 2024).

Labor relations

- A union violated the LR statute when it denied an employee's membership application due to the employee's Facebook posts referring to union corruption. The FLRA explained that a union may deny a bargaining-unit employee's initial application for membership for only two specified reasons, and criticizing the union in social media postings isn't among them. *National Federation of Federal Employees, Local 2189 and Jonathan Jarman*, [115 LRP 12647](#) (FLRA 2015).
- The agency suspended the grievant for five days for sending to more than 400 employees an email with a link to an inappropriate photograph posted on the union president's social media page. The FLRA dismissed the union's exceptions as untimely. *Department of the Navy, Portsmouth Naval Shipyard*, [123 LRP 10039](#), [73 FLRA 484](#) (FLRA 2023).
- The FLRA upheld an arbitration award that set aside the grievant's suspension for "web-surfing" sports websites and Facebook on work time. The agency had argued that the award was contrary to agency regulations stating that the personal use of agency computers "should occur during non-work time, but the FLRA rejected the agency's contention that the word "should" was grammatically equivalent to "must." *Department of Veterans Affairs Medical Center, Dayton, Ohio*, [115 LRP 11853](#), [68 FLRA 360](#) (FLRA 2015).
- A two-day suspension was the appropriate penalty for an employee who captioned and posted to Facebook a photograph of an agency customer with an unusual hat. The arbitrator reduced the agency's 14-day suspension due to various mitigating factors, including the lack of a social media policy. "In today's wired society, it is incumbent on the agency to develop and disseminate a policy on social media," the

arbitrator said. *AFGE, Council 47 and Social Security Administration, San Francisco Region*, [114 LRP 39543](#) (Fed. Arb. 2014).

- An arbitrator concluded that, viewed collectively, the grievant's Facebook postings criticizing her manager and hospital operations justified five-day suspension for creating a disturbance in the work unit. The original 14-day suspension couldn't stand, the arbitrator determined, because some of the other charges were dismissed or unproven. *Blanchfield Army Community Hospital*, [111 LRP 37334](#) (Fed. Arb. 2011).

Workers' compensation

- The OWCP properly determined that a letter carrier received an overpayment of compensation due to a forfeiture of compensation. The record showed the claimant knowingly failed to report her employment activities. She was employed as a general manager for a lodge, and her social media posts contained information about the lodge's bookings, sales promotions, and operations. *J.D. and U.S. Postal Service*, [123 LRP 14341](#) (ECAB 2023).
- The ECAB found that the OWCP properly determined that the claimant forfeited her right to compensation because she knowingly failed to report her self-employment activities and earnings. The record showed that the claimant had a business and performed work for the business for the time periods covered by several CA-7 forms. An investigation showed that the claimant was advertising her handmade crafts and sweets on social media. *K.B. and U.S. Postal Service*, [122 LRP 10573](#) (ECAB 2022).
- A city carrier filed an occupational disease claim alleging that she sustained stress, anxiety, and depression when a supervisor disseminated a sexually-oriented personal advertisement the claimant had placed on social media. The ECAB found that the OWCP properly denied the claim. The claimant did not submit probative evidence establishing harassment or discrimination. The ECAB pointed out that since the claimant admitted that she placed the personal ad on Craigslist, which is open to a worldwide community, she did not show how discussion of the ad by coworkers would constitute harassment. *D.B. and U.S. Postal Service*, [119 LRP 4032](#) (ECAB 2019).
- A mail carrier who was receiving workers' compensation wrote about his side job as a DJ on his Facebook page. The agency's Office of Inspector General read the posts, followed the carrier to his DJ gig, and videotaped him carrying bags and equipment. The carrier had to pay back \$43,300 in workers' compensation benefits because he failed to report his income as a DJ. *A.C. and U.S. Postal Service*, [112 LRP 23948](#) (ECAB 2012).
- A mail clerk alleged on a Monday that she had injured her neck at work the prior Thursday. The clerk's Facebook page showed that she had run a long-distance race four days before the alleged injury. Although the agency had a copy of the Facebook page, she denied running in this race and several other races during an investigation. This evidence, and other inconsistencies, caused the agency and the ECAB to deny her claim for benefits. *R.R. and U.S. Postal Service*, [112 LRP 3566](#) (ECAB 2011).

Privacy and disclosures

- Before using federal agency computer systems or networks, agencies generally provide notices that the employee has no right to privacy regarding any communications and information on government computers and networks. The employee acknowledges and consents to the monitoring, interception, and search of his communications transiting through or stored on those systems, and that the employee has no reasonable expectation of privacy in his use of those systems through various procedures, such as computer-user agreements, log-on banners, and computer-training programs. *DOJ Memorandum Opinion: Legality of Intrusion-Detection System Protect Unclassified Computer Networks in the Executive Branch* (2009).
- The reasonableness of a public employer's search of an employee's electronic devices will be judged by the same standards as its search of an employee's office. That means that when an employer conducts a warrantless search of an employee's electronic communications, it must have reasonable grounds for suspecting that the search was necessary for a non-investigatory work-related purpose. The methods must be reasonably related to the search's objective and not excessive under the circumstances. *City of Ontario, et al. v. Quor et al.*, [110 LRP 35031](#), 130 S. Ct. 2619 (U.S. 2010).

Other Resources

- [Discipline Roundup](#)
- [Hatch Act Roundup](#)
- [Quick Start Guide: Computer and Email Misuse](#)
- [Quick Start Guide: Ethics and Conflict of Interest](#)
- [Quick Start Guide: Hatch Act -- Social Media](#)
- [Broida Guide to MSPB Law: Computer; Internet](#)

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